LAWS2100 Jurisprudence
LAWS8005 Theories of Law and Justice

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Week 7 – Legal Reasoning and the Nature of Law



Five themes

- Legal reasoning and the question ‘What is law’?
- Legal interpretation
- Rules vs Standards/Principles
- Legal defeasibility
- Judicial discretion

Raz on legal reasoning

I have rejected the strong thesis of the autonomy of legal reasoning. Legal reasoning is an instance of moral reasoning.

Legal doctrines are justified only if they are morally justified, and they should be followed only if it is morally right to follow them. The legal systems of different countries, with their doctrines of balancing the powers of the different organs of government, make varying claims, and have differing principles, as to when the courts are morally justified or even required to deviate from legal doctrine when it conflicts with morality and when the courts should leave the reform of doctrine to other bodies of government. […] In reasoning according to law the courts ought to follow those principles, which are moral principles, though they may be mistaken moral principles. Thus legal reasoning is an instance of moral reasoning, though sometimes it is morally incorrect, or based on morally deficient legal principles.

Finnis on legal reasoning

Legal reasoning, indeed, is technical reasoning, at least in large part not moral reasoning.

Much academic theory about legal reasoning greatly exaggerates the extent to which reason can settle what is greater good or lesser evil, and minimizes the need for authoritative sources which, so far as they are clear and respect the few absolute moral rights and duties, are to be respected as the only rational basis for judicial reasoning and decision, in relation to the countless issues which do not directly involve those absolute rights and duties. **A natural law theory in the classical tradition makes no pretence that natural reason can determine the one right answer to those countless questions which arise for the judge who finds the sources unclear.**

Main types of (legal) reasoning

- **Deductive Reasoning:** General rule → specific conclusion (e.g., syllogism)
- **Inductive Reasoning:** Specific cases → general principle (e.g., common law development)
- **Analogical Reasoning:** Comparing cases; similar facts → similar outcomes (precedent)
- **Abductive Reasoning** – Inference to the best explanation; plausibility, not certainty (we start with an observation or a set of facts, and conclude with the best available hypothesis to explain those facts)
- **Purposive/Teleological Reasoning** – Reasoning in light of a rule's underlying purpose/rationale
- **Reasoning by Principle** – Weighing and balancing competing principles/values (not fixed rules)

Main types of (legal) rules

- **Mandatory Rules** – Impose a duty to act ('X must do Y')
- **Prohibitive Rules** – Impose a duty not to act ('X must not do Y')
- **Permissive Rules** – Grant a liberty/option ('X may do Y')
- **Power-Conferring Rules** – Confer legal power to create/change/extinguish legal relations (e.g., making a will, passing legislation)
- **Constitutive Rules** – Create the activity/institution itself (e.g., rules defining contracts, marriage, corporations)
- **Rules, principles, standards, norms…**

Fred Schauer on the no-vehicles-in-the-park rule (in the context of the Hart-Fuller debate)

- This part of the Hart-Fuller debate is “a debate within a debate”, which offers insights about the nature of legal rules, legal interpretation, and legal language
- Fuller’s example: “It shall be a misdemeanor, punishable by a fine of five dollars, to sleep in any railway station.”

➢ Is it really possible to interpret a word in a statute without knowing the *aim* of the statute?

- Are Hart and Fuller disagreeing about the concept of law, or about what judges do/should do when they interpret and apply the law?

Frederick Schauer (1946-2024)

Frank Stanton Professor of the First Amendment, Harvard University (1990 – 2008)

David and Mary Harrison Distinguished Professor of Law, University of Virginia (2008 – 2024)

Free Speech: A Philosophical Enquiry (Cambridge, 1982)

Playing By the Rules: A Philosophical Examination of Rule-Based Decision-Making in Law and in Life (Clarendon/Oxford, 1991)

'A Critical Guide to Vehicles in the Park' (2008) 83(4) *New York University Law Review* 1109

Thinking Like a Lawyer: A New Introduction to Legal Reasoning (Harvard University Press, 2009)

The Force of Law (Harvard University Press, 2015)

The Proof: Uses of Evidence in Law, Politics, and Everything Else (Harvard University Press, 2022)

Schauer, *Thinking like a Lawyer* (2009)

- Do lawyers (and judges) think, reason, and argue differently from ordinary people?
- Are there any "techniques of reasoning" that are characteristic of legal decision-making?
- Scepticism about legal reasoning (e.g., American legal realism)
- Teaching the law: legal rules (and principles, doctrines, etc); the skills of lawyering; and *legal reasoning*
  - Are there specific forms of reasoning associated with the legal systems we are familiar with?
  - Perhaps, if we can identify "methods of reasoning that are found everywhere but that are particularly concentrated and dominant in legal argument and decision-making, then the claim that there is something called legal reasoning will turn out to be justified." (p. 8)

Schauer on legal reasoning and the Rule of Law

- Legal reasoning and the *inherent generality of law*
- Legal reasoning and the Rule of Law
  - "It is important to understand that the belief that there is a moderately distinct form of reasoning we call "legal reasoning" is in the final analysis an empirical claim."(p. 11)
  - "In a society governed by the wise and the good, legal reasoning is likely simply to get in the way. And in such a society, were such a society ever to exist, the Rule of Law would be at least superfluous, and quite possible pernicious." (ibid)

The case of the speluncean explorers

- Supreme Court of Newgarth
- Early May 4299 – The four defendants, in the company of Roger Whetmore (all members of the Speluncean Society) remain trapped in a limestone cave due to a landslide
- They are rescued after 32 days. It is then discovered that on day 23 Roger Whetmore was killed and eaten by his companions
- The defendants are found guilty of murdering Roger Whetmore
- "The judge then sentenced them to be hanged, **the law of our Commonwealth permitting him no discretion with respect to the penalty to be imposed**."

Lon Fuller, 'The Case of the Speluncean Explorers', *Harvard Law Review*, (1949) 62(4) 619



Five options

- Section 12-A should be applied regardless of the results
- The law should not be applied
- The law should be applied, but in the light of its purpose
- The decision is too hard, and judges should withdraw from the case
- Judges should use common sense and take into account what the public thinks

Chief Justice Truepenny

"The language of our statute is well known: "Whoever shall willfully take the life of another shall be punished by death." […] **This statute permits of no exception applicable to this case**, however our sympathies may incline us to make allowance for the tragic situation in which these men found themselves." (L. Fuller, 'The Case of the Speluncean Explorers', Harvard Law Review, Vol. 62, 1949, p. 619)

→ Executive clemency to mitigate the rigors of the law

"I think we may therefore assume that some form of **clemency** will be extended to these defendants. If this is done, then **justice will be accomplished without impairing either the letter or spirit of our statutes** and without offering any encouragement for the disregard of law." (Ibid., p. 619)

Justice Foster

"I believe something more is on trial in this case than the fate of these unfortunate explorers; that is the law of our Commonwealth. […] For us to assert that the law we uphold and expound compels us to a conclusion we are ashamed of […] seems to me to amount to **an admission that the law of this Commonwealth no longer pretends to incorporate justice**." (L. Fuller, 'The Case of the Speluncean Explorers', Harvard Law Review, Vol. 62, 1949, p. 620)

→ Justice Foster believes that the law declares the defendants to be innocent of any crime, on the basis of **two independent arguments** (either of which is sufficient to justify the acquittal)

Justice Foster's first argument

- Enacted/positive law of the Commonwealth (including all of its statutes and precedents) is not applicable to this case
- Positive law is predicated on the possibility of a human society
- *Cessante ratione legis, cessat et ipsa lex* (When the reason for a law ceases, the law itself ceases)
- "**Whatever particular objects may be sought by the various branches of our law,** it is apparent on reflection that all of them are directed toward facilitating and improving men's coexistence and regulating with fairness and equity the relations of their life in common." (L. Fuller, 'The Case of the Speluncean Explorers', Harvard Law Review, Vol. 62, 1949, p. 621)
- State of civil society vs. state of nature

Agreement, law, and society

- *Ubi societas, ibi ius* (Wherever there is society, there is law)
- Legal powers find their moral justification in an agreement/social contract
- “If it was proper that these ten lives should be sacrificed to save the lives of five imprisoned explorers, why then are we told it was wrong for these explorers to carry out an arrangement which would save four lives at the cost of one?” (L. Fuller, ‘The Case of the Speluncean Explorers’, Harvard Law Review, Vol. 62, 1949, p. 623)
- “…what shall we say of **the supposed absolute value of a human life** in the desperate situation in which these defendants and their companion Whetmore found themselves? (Ibid.)

Justice Foster's second argument

- Let's assume that our positive law can be applied in this case
- "…one of the most ancient bits of legal wisdom is the saying that a man may break the letter of the law without breaking the law itself. **Every proposition of positive law, whether contained in a statute or a judicial precedent, is to be interpreted reasonably, in the light of its evident purpose**." (L. Fuller, 'The Case of the Speluncean Explorers', Harvard Law Review, Vol. 62, 1949, p. 624)
- Analogy: killing in self-defence is excused
- Foster's second argument "…raises no question of fidelity to enacted law, though it may possibly raise a question of **the distinction between intelligent and unintelligent fidelity**." (Ibid., p. 625)

Justice Tatting

- The defendants were not subject to our law because they were not in a "state of civil society", but in a "state of nature" (Foster)?
- "I can neither accept his notion that these men were under a code of nature which this Court was bound to apply to them, nor can I accept the odious and perverted rules that he would read into that code." (L. Fuller, 'The Case of the Speluncean Explorers', *Harvard Law Review*, Vol. 62, 1949, p. 628)
- According to Foster, no statute (whatever its language) should be applied in a way that contradicts its purpose – but (i) there is more than one purpose; and (ii) there might be a different explanation for the excuse of self defence
- Finally, what is the scope of this exception?

→ Justice Tatting declares their withdrawal from the decision of this case

Justice Keen's two questions

(1) Whether executive clemency should be extended to these defendants if the conviction is affirmed?

(2) Whether what the defendants did was "right" or "wrong", "wicked" or "good"?

According to Justice Keen, both questions should be put aside, as **irrelevant to the discharge of the office of a judge**

→ "The sole question before us for decision is whether these defendants did, **within the meaning of N.C.S.A. (N.s.) § 12-A**, willfully take the life of Roger Whetmore. The exact language of the statute is as follows: "Whoever shall willfully take the life of another shall be punished by death."" (L. Fuller, 'The Case of the Speluncean Explorers', Harvard Law Review, Vol. 62, 1949, p. 632)

Separation of powers

- The principle of the supremacy of the legislative branch of our government
- "**From that principle flows the obligation of the judiciary to enforce faithfully the written law**, and to interpret that law in accordance with its plain meaning without reference to our personal desires or our individual conceptions of justice." (L. Fuller, 'The Case of the Speluncean Explorers', Harvard Law Review, Vol. 62, 1949, p. 633)

→If we do not know the purpose of § 12-A, how can we possibly say there is a "gap" in it?

→"As in dealing with the statute, so in dealing with the exception, the question is not the conjectural *purpose* of the rule, but its *scope*." (Ibid., p. 636)

Justice Handy

- “We have heard this afternoon learned disquisitions on the distinction between positive law and the law of nature, the language of the statute and the purpose of the statute, judicial functions and executive functions, judicial legislation and legislative legislation.” (L. Fuller, ‘The Case of the Speluncean Explorers’, Harvard Law Review, Vol. 62, 1949, p. 637)

→The problem before us is a question of practical wisdom

→A few basic rules of the game aside, “…I believe that all government officials, including judges, will do their jobs best if they treat forms and abstract concepts as instruments.” (Ibid., p. 939)

→Common sense, public opinion, executive clemency, and gossip

Fuller's Postscript

"The case was constructed for the sole purpose of bringing into a common focus certain divergent philosophies of law and government. These philosophies presented men with **live questions of choice** in the days of Plato and Aristotle. Perhaps they will continue to do so when our era has had its say about them. **If there is any element of prediction in the case, it does not go beyond a suggestion that the questions involved are among the permanent problems of the human race**."

(Lon Fuller, 'The Case of the Speluncean Explorers', Harvard Law Review, Vol. 62, 1949, p. 645)



The Convergence of Rules and Standards

- Schauer suggests that “the choice between rules and standards, between specific and vague directives, may not make nearly as much of a difference as is ordinarily assumed.” (p. 305)
- He challenges the “conventional wisdom” in light of the convergence hypothesis
  - The avoidance of rules
  - The concretization of standards

- “…it may be that **the tool of regulatory specificity as a way of managing discretion** is less a part of the toolbox of regulatory strategy and institutional design than has historically been thought to be the case…” (319)

Rules and exceptions

‘Either rules are what they would be in the formalist’s heaven and they bind as fetters bind; or there are no rules, only predictable decisions or patterns of behaviour.’ [This is a quotation from Llewellyn’s *The Bramble Bush*) Yet surely this is a false dilemma. We promise to visit a friend the next day. When the day comes it turns out that keeping the promise would involve neglecting someone dangerously ill. The fact that this is accepted as an adequate reason for not keeping the promise surely does not mean that there is no rule requiring promises to be kept, only a certain regularity in keeping them. It does not follow from the fact that such rules have exceptions incapable of exhaustive statement, that in every situation we are left to our discretion and are never bound to keep a promise. **A rule that ends with the word ‘unless…’ is still a rule**.

H.L.A. Hart, *The Concept of Law* (OUP, 3rd ed, 2012) 139

Legal defeasibility

- A rule is defeasible if capable of being defeated: a certain conclusion is justified if certain criteria are met; however, that conclusion can be "defeated" if further criteria are met (see example in the next slide)
- Reflect on the following questions:
  - Is defeasibility a necessary consequence of the nature of language, or the nature of rules, or the nature of law?
  - What is the relationship between legal defeasibility and the Rule of Law?
  - What is the relationship between legal defeasibility and legal indeterminacy?

Church of the Holy Trinity v. United States

- *Church of the Holy Trinity v. United States*, 143 U.S. 457 (1892), is a decision of the Supreme Court of the United States regarding an employment contract between the Church of the Holy Trinity, New York, and an English Anglican priest
- The 1885 Alien Contract Labour Law prohibited "the importation and migration of foreigners and aliens under contract or agreement to perform labor or service of any kind in the United States, its territories, and the District of Columbia."
- The US Supreme Court held that a minister was not a foreign laborer under the statute (even though he was a foreigner)

Judicial discretion

According to Hart, legal theory has either ignored or exaggerated the indeterminacies of legal rules

"…all systems […] **compromise between two social needs**: the need for certain rules which can, over great areas of conduct, safely be **applied by private individuals to themselves** without fresh official guidance or weighing up of social issues, and the need to leave open, for later settlement by **an informed, official choice**, issues which can only be properly appreciated and settled when they arise in a concrete case."

H.L.A. Hart, *The Concept of Law* (OUP, 3rd ed, 2012) 130

"Formalism and rule-scepticism are the Scylla and Charybdis of juristic theory; they are great exaggerations, salutary where they correct each other, and **the truth lies between them**" (Ibid, 147)

Judicial discretion – Hart's *Postscript*

"The sharpest direct conflict between the legal theory of this book and Dworkin's theory arises from my contention that **in any legal system** there will always be certain legally unregulated cases in which on some point no decision either way is dictated by the law and **the law is** accordingly **partly indeterminate or incomplete**." (H.L.A. Hart, *The Concept of Law*, OUP, 1994 [1961], p. 272)

→For Dworkin, this picture of the law is a misleading account of both law and judicial reasoning

→Dworkin's interpretive legal theory includes explicit settled law and implicit legal principles

→Hence, the judge never steps outside the law, making new law

Hart on judicial law-making powers

- The are cases left partly unregulated by the law (i.e. hard cases)
- In these cases, judges decide by exercising law-making powers
- However, for Hart, **judicial law-making powers are different from the law-making powers enjoyed by the legislator**
  - A judge's power is subject to many constraints that narrow their choice (e.g. judges cannot introduce large scale reforms or new codes)
  - Judges exercise interstitial powers
  - Judicial power is not arbitrary power – judges must always justify their decisions in light of some general reasons and must act as a conscientious legislator

Hart on Dworkin's three main criticisms

1. Hart's view on judicial discretion is a false description of the judicial process – this is not what judges do in hard cases
2. Judicial discretion is undemocratic (judges are not elected)
3. Judicial law-making is unjust, because is a form of retrospective legislation

- In hard cases, "judges do not just push away their law books"; even Dworkin's theory of adjudication incorporates choices
- It's a necessary, small price to pay (provided that judicial power is limited); delegation of limited legislative powers to the executive is a familiar feature of modern democracies
- In hard cases, by definition, there is no state of clear established law to justify expectations

What have we learned so far?

- Keep your conceptual toolbox in order
- Different questions for different problems
- The research essay provides a great opportunity to do some independent research and to join the conversation (Curiosity, Charity, Clarity)
- When revising the first part of the Unit, consider how specific claims relate to general theories of law (zoom in / zoom out)
- Go back to week 1:
  - Consider how ideas inspired by Austin's theory of law were used in the Gove land rights case - *Milirrpum v Nabalco Pty Ltd* [1971] 17 FLR 141
  - Read John Gardner on 'Why study jurisprudence?'



Hart on the nature of legal theory

"My aim in this book was to provide **a theory of what law is** which is both **general** and **descriptive**." (H.L.A. Hart, *The Concept of Law*, OUP 1994 [1961], p. 239)

- ***General*** in the sense that it is not tied to any particular legal system or legal culture
- ***Descriptive*** in that it is morally neutral and has no justificatory aims

"As a means of carrying out **this descriptive enterprise** my book makes repeated use of a number of concepts such as *duty-imposing rules, power-conferring rules, rules of recognition, rules of change, acceptance of rules, internal and external points of view, internal and external statements, and legal validity*" (Ibid., p. 240)

The difference law makes

"[L]egal studies are really attractive and worthwhile because law, and juristic argumentation, is an arena where themes and theses in ethics, political theory, and related philosophical domains all come to bear on – and crystallize out in – **legislating and adjudicating to make a difference to human persons**."

John Finnis, *Philosophy of Law: Collected Essays Volume IV* (OUP, 2011)



Some further questions…

- According to Finnis, natural law theory of (the nature of) law seeks both to give an account of the facticity of law and to answer **questions that remain central to understanding law**. As listed by Green and Adams 2019 (having observed that "No legal philosopher can be only a legal positivist"), these further questions (which "legal positivism does not aspire to answer") are:
  - What kinds of things could possibly count as the merits of law?
  - What role should law play in adjudication?
  - What claim has law on our obedience?
  - What laws should we have?
  - And should we have law at all?